

सत्यमेव जयते

The Central Educational Institutions (Reservation in Admission) Act, 2006

(ACT No. 5 OF 2007)

[*As on the* 15*th April*, 2026]

AMENDMENT ACT

The Maritime Marriage (Amendment) Act, 2012 (31 of 2012).

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LIST OF ABBREVIATIONS USED

Cl., cls.	. . . . .	*for*	Clause, clauses.
Ins.	. . . . .	,,	Inserted.
Notifn.	. . . . .	,,	Notification.
S., ss.	. . . . .	,,	Section, sections.
Sch.	. . . . .	,,	Schedule.
Subs.	. . . . .	,,	Substituted
w.e.f.	. . . . .	,,	with effect from.

THE CENTRAL EDUCATIONAL INSTITUTIONS (RESERVATION IN ADMISSION) ACT, 2006

ARRANGEMENT OF SECTIONS

SECTIONS

1. Short title.
2. Definitions.
3. Reservation of seats in Central Educational Institutions.
4. Act not to apply in certain cases.
5. Mandatory increase of seats.
6. Reservation of seats in admissions to begin in calendar year, 2008.
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THE SCHEDULE.

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THE CENTRAL EDUCATIONAL INSTITUTIONS (RESERVATION IN ADMISSION) ACT, 2006

ACT NO. 5 OF 2007

[3*rd January*, 2007.]

An Act to provide for the reservation in admission of the students belonging to the Scheduled Castes, the Scheduled Tribes and the Other Backward Classes of citizens, to certain Central Educational Institutions established, maintained or aided by the Central Government, and for matters connected therewith or incidental thereto.

BE it enacted by Parliament in the Fifty-seventh Year of the Republic of India as follows:—

1. Short title.—This Act may be called the Central Educational Institutions (Reservation in Admission) Act, 2006.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "academic session" means the period in a calendar year, or a part thereof, during which a Central Educational Institution is open for teaching or instruction in any branch of study or faculty;

(*b*) "annual permitted strength" means the number of seats, in a course or programme for teaching or instruction in each branch of study or faculty authorised by an appropriate authority for admission of students to a Central Educational Institution;

(*c*) "appropriate authority" means the University Grants Commission, the Bar Council of India, the Medical Council of India, the All India Council for Technical Education or any other authority or body established by or under a Central Act for the determination, coordination or maintenance of the standards of higher education in any Central Educational Institution;

(*d*) "Central Educational Institution" means—

(*i*) a university established or incorporated by or under a Central Act;

(*ii*) an institution of national importance set up by an Act of Parliament;

(*iii*) an institution, declared as a deemed University under section 3 of the University Grants Commission Act, 1956 (3 of 1956), and maintained by or receiving aid from the Central Government;

(*iv*) an institution maintained by or receiving aid from the Central Government, whether directly or indirectly, and affiliated to an institution referred to in clause (*i*) or clause (*ii*), or a constituent unit of an institution referred to in clause (*iii*);

(*v*) an educational institution set up by the Central Government under the Societies Registration Act, 1860 (21 of 1860);

(*e*) "faculty" means the faculty of a Central Educational Institution;

(*f*) "Minority Educational Institution" means an institution established and administered by the minorities under clause (*1*) of article 30 of the Constitution and so declared by an Act of Parliament or by the Central Government or declared as a Minority Educational Institution under the National Commission for Minority Educational Institutions Act, 2004 (2 of 2005);

(*g*) "Other Backward Classes" means the class or classes of citizens who are socially and educationally backward, and are so determined by the Central Government;

(*h*) "Scheduled Castes" means the Scheduled Castes notified under article 341 of the Constitution;

(*i*) "Scheduled Tribes" means the Scheduled Tribes notified under article 342 of the Constitution;

[1][(*ia*) "specified north-eastern region" means the area comprising of the States of Arunachal Pradesh, Manipur, Meghalaya, Mizoram, Nagaland, Sikkim, Tripura and the tribal areas of Assam referred to in the Sixth Schedule to the Constitution;

(*ib*) "State seats", in relation to a Central Educational Institution, means such seats, if any, out of the annual permitted strength in each branch of study or faculty as are earmarked to be filled from amongst the eligible students of the State in which such institution is situated;]

(*j*) "teaching or instruction in any branch of study" means teaching or instruction in a branch of study leading to three principal levels of qualifications at bachelor (undergraduate) masters (postgraduate) and doctoral levels.

3. Reservation of seats in Central Educational Institutions.—The reservation of seats in admission and its extent in a Central Educational Institution shall be provided in the following manner, namely:—

(*i*) out of the annual permitted strength in each branch of study or faculty, fifteen per cent. seats shall be reserved for the Scheduled Castes;

(*ii*) out of the annual permitted strength in each branch of study or faculty, seven and one-half per cent. seats shall be reserved for the Scheduled Tribes;

(*iii*) out of the annual permitted strength in each branch of study or faculty, twenty-seven per cent. seats shall be reserved for the Other Backward Classes.

[2][Provided that the State seats, if any, in a Central Educational Institution situated in the tribal areas referred to in the Sixth Schedule to the Constitution shall be governed by such reservation policy for the Scheduled Castes, the Scheduled Tribes and the Other Backward Classes, as may be specified, by notification in the Official Gazette, by the Government of the State where such institution is situated:

Provided further that if there are no State seats in a Central Educational Institution and the seats reserved for the Scheduled Castes exceed the percentage specified under clause (*i*) or the seats reserved for the Scheduled Tribes exceed the percentage specified under clause (*ii*) or the seats reserved for the Scheduled Castes and the Scheduled Tribes taken together exceed the sum of percentages specified under clauses (*i*) and (*ii*), but such seats are—

(*a*) less than fifty per cent. of the annual permitted strength on the date immediately preceding the date of commencement of this Act, the total percentage of the seats required to be reserved for the Other Backward Classes under clause (*iii*) shall be restricted to the extent such sum of percentages specified under clauses (*i*) and (*ii*) falls short of fifty percent.of the annual permitted strength;

(*b*) more than fifty per cent. of the annual permitted strength on the date of immediately preceding the date of commencement of this Act, in that case no seats shall be reserved for the Other Backward Classes under clause (*iii*) but the extent of the reservation of seats for the Scheduled Castes and the Scheduled Tribes shall not be reduced in respect of Central Educational Institutions in the specified north-eastern region.]

4. Act not to apply in certain cases.—The provisions of section 3 of this Act shall not apply to—

[3]* * * * *

(*b*) the institutions of excellence, research institutions, institutions of national and strategic importance specified in the Schedule to this Act:

Provided that the Central Government may, as and when considered necessary, by notification in the Official Gazette, amend the Schedule;

(*c*) a Minority Educational Institution as defined in this Act;

1. Ins. by Act 31 of 2012, s. 2 (w.e.f. 19-6-2012).
2. Ins. by s. 3, *ibid*. (w.e.f. 19-6-2012).
3. Cl. (*a*) omitted by s. 4, *ibid*. (w.e.f. 19-6-2012).

(*d*) a course or programme at high levels of specialisation, including at the post-doctoral level, within any branch of study or faculty, which the Central Government may, in consultation with the appropriate authority, specify.

5. Mandatory increase of seats.—(*1*) Notwithstanding anything contained in clause (*iii*) of section 3 and in any other law for the time being in force, every Central Educational Institution shall, with the prior approval of the appropriate authority, increase the number of seats in a branch of study or faculty over and above its annual permitted strength so that the number of seats, excluding those reserved for the persons belonging to the Scheduled Castes, the Scheduled Tribes and the Other Backward Classes, is not less than the [1][number of such seats available or actually filled, whichever be less,] for the academic session immediately preceding the date of the coming into force of this Act.

(*2*) Where, on a representation by any Central Educational Institution, the Central Government, in consultation with the appropriate authority, is satisfied that for reasons of financial, physical or academic limitations or in order to maintain the standards of education, the annual permitted strength in any branch of study or faculty of such institution cannot be increased for the academic session following the commencement of this Act, it may permit by notification in the Official Gazette, such institution to increase the annual permitted strength over a maximum period of [2][six years] beginning with the academic session following the commencement of this Act; and then, the extent of reservation for the Other Backward Classes as provided in clause (*iii*) of section 3 shall be limited for that academic session in such manner that the number of seats available to the Other Backward Classes for each academic session are commensurate with the increase in the permitted strength for each year.

6. Reservation of seats in admissions to begin in calendar year, [3][2008].—The Central Educational Institutions shall take all necessary steps, which are required in giving effect to the provisions of sections 3, 4 and 5 of this Act, for the purposes of reservation of seats in admissions to its academic sessions commencing on and from the calendar year, [3][2008].

7. Laying of notifications before Parliament.—Every notification made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the notification or both Houses agree that the notification should not be made, the notification shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that notification.

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1. Subs. by Act 31 of 2012, s. 5, for "number of such seats available" (w.e.f. 19-6-2012).
2. Subs. by s. 5, *ibid.*, for "three years" (w.e.f. 19-6-2012).
3. Subs. by s. 6, *ibid.*, for "2007" (w.e.f. 19-6-2012).

THE SCHEDULE

[*See* section 4(*b*)]

S. No.	Names of the Institutions of Excellence, etc.
1.	Homi Bhabha National Institute, Mumbai and its constituent units, namely:— (*i*) Bhabha Atomic Research Centre, Trombay; (*ii*) Indira Gandhi Centre for Atomic Research, Kalpakkam; (*iii*) Raja Ramanna Centre for Advanced Technology, Indore; (*iv*) Institute for Plasma Research, Gandhinagar; (*v*) Variable Energy Cyclotron Centre, Kolkata; (*vi*) Saha Institute of Nuclear Physics, Kolkata; (*vii*) Institute of Physics, Bhubaneshwar; (*viii*) Institute of Mathematical Sciences, Chennai; (*ix*) Harish-Chandra Research Institute, Allahabad; (*x*) Tata Memorial Centre, Mumbai.
2.	Tata Institute of Fundamental Research, Mumbai.
3.	North-Eastern Indira Gandhi Regional Institute of Health and Medical Science, Shillong.
4.	National Brain Research Centre, Manesar, Gurgaon.
5.	Jawaharlal Nehru Centre for Advanced Scientific Research, Bangalore.
6.	Physical Research Laboratory, Ahmedabad.
7.	Space Physics Laboratory, Thiruvananthapuram.
8.	Indian Institute of Remote Sensing, Dehradun.

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STATEMENT OF OBJECTS AND REASONS

Part IV of the Constitution containing the Directive Principles of State Policy, in article 46, lays down that the State shall promote with special care the educational and economic interests of the weaker sections of the people, and, in particular, of the Scheduled Castes and the Scheduled Tribes, and shall protect them from social injustice. Access to education is of utmost importance in insuring advancement of persons belonging to the Scheduled Castes, the Scheduled Tribes, and the socially and educationally backward classes of citizens, who are also referred to as the Other Backward Classes (OBCs).

2. The Constitution (93rd Amendment) Act, 2005, inserted clause (5) in article 15 of the Constitution, with a view to promote the educational advancement of the socially and educationally backward classes of citizens, the Scheduled Castes and the Scheduled Tribes through special provisions relating to admission of students belonging to these categories in all educational institutions, including private educational institutions, whether aided or un-aided by the State. In terms of this provision, Parliament as well as the State Legislatures are empowered to make appropriate laws for the educational advancement of the weaker sections of the people.

3. With a view to give effect to the Constitutional provisions, it is expedient and necessary to make statutory provisions in the proposed Bill for reservation in matters of admissions for the students belonging to the Scheduled Castes (SCs), the Scheduled Tribes (STs) and the socially and educationally backward classes of citizens (OBCs) in the Central Educational Institutions, including Institutions deemed to be Universities established, maintained or aided by the Central Government. The provisions of the proposed Bill, *inter alia*, will not apply to the minority educational institutions referred to in clause (1) of article 30.

4. The Bill seeks to achieve the above objective.

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ARJUN SINGH.

NEW DELHI;
The 23*rd August*, 2006.